

March 14, 2025

Office of Science and Technology Policy
c/o Networking and Information Technology Research and
Development (NITRD) National Coordination Office (NCO)
Attn: Faisal D'Souza / AI Action Plan
2415 Eisenhower Avenue
Alexandria, VA 22314

Submitted via email to: [REDACTED]

To Whom It May Concern:

Kaiser Permanente appreciates the NITRD NCO's consideration of our comments on the development of a new AI Action Plan, as directed by Executive Order 14179.¹

Kaiser Permanente is the largest private integrated health care delivery system in the United States, delivering health care to over 12.5 million members in eight states and the District of Columbia.² Our mission is to provide high-quality, affordable health care services and to improve the health of our members and the communities we serve. We have a long history of developing and deploying innovative technologies and we prioritize safety, transparency, and improved health outcomes in the development, assessment, and deployment of any technology, including AI.

The transformative potential for AI to improve nearly every aspect of health care, such as quality, patient experience, affordability and administrative efficiency, is truly profound. At the same time, it is critical that AI tools used in health care are safe, effective and trusted by both patients and health care providers. We support efforts by this administration to define priority policy actions that will promote innovation and safeguard against unnecessarily burdensome requirements.

In addition to our more detailed comments below, we ask that the administration pursue the following high-priority policy actions:

- *Federal government and private sector partnership to support AI innovation, research and development.* This should include clinical trials and establishment of a post-implementation AI clinical tool surveillance program that health systems and providers can adapt to serve their local patient populations and specific health care settings.
- *Development and implementation of a national AI regulatory framework that is flexible, adaptable and evidence-based.* This framework should provide an overarching risk-based

¹ Exec. Order No. 14179, *Removing Barriers to American Leadership in Artificial Intelligence*, 90 Fed. Reg. 8741 (January 23, 2025).

² Kaiser Permanente comprises Kaiser Foundation Health Plan, Inc., one of the nation's largest not-for-profit health plans, and its health plan subsidiaries outside California and Hawaii; the not-for-profit Kaiser Foundation Hospitals, which operates 40 hospitals and over 600 other clinical facilities; and the Permanente Medical Groups, self-governed physician group practices that exclusively contract with Kaiser Foundation Health Plan and its health plan subsidiaries to meet the health needs of Kaiser Permanente's members.

structure for industry-specific guidelines and standards that preempt state level legislation to avoid duplicative and inconsistent laws and requirements.

- *Coordinated oversight of AI* across federal and state entities to avoid inefficient regulation and enforcement.

AI in Health Care

Health care increasingly utilizes AI tools and applications to improve patient outcomes, enhance operational and administrative efficiency, and advance medical research and education. Key categories of AI applications include assistive diagnosis of medical conditions for provider review, customized treatment recommendations, proactive case management, advanced analytics for population health management, improved patient engagement, identification of social health and economic barriers to healthy life, and a range of administrative activities. Specific examples³ of AI use cases in health care include:

- Applying clinical decision support tools across the spectrum of primary and specialty care, such as computer vision programs to help clinicians identify subtle features that may be associated with increased risk of diseases. For example, AI-enabled imaging of the retina can be used to predict the risk of cardiovascular disease and stroke.
- Using predictive analytics to better identify risks, quality gaps and outcomes across patient populations.
- Reducing provider burden and improving productivity by drafting patient communications, such as discharge instructions, for a provider to review.
- Improving efficiency in administrative tasks such as provider credentialing and member verification.
- Providing patient support via patient-facing chatbots and other self-directed tools.
- Supporting medical education by enhancing training materials such as those related to anatomy, pathology, surgical techniques, etc. For example, AI can be used to create simulations of surgical procedures that allow trainees to practice skills and develop a better understanding of complex procedures.
- Predicting health care demand to optimize clinical workflows.

Many types of AI have been used extensively in health care for years, such as machine learning and pattern analysis to assist in interpreting imaging and algorithms to provide clinical decision support. However, the health care industry has just begun testing other types, such as generative AI applications.⁴ As this important work progresses, it is critical that the American health care

³ For a more detailed description of the use of AI tools by specialty, see American Medical Association and Manatt Health, *Future of Health: The Emerging Landscape of Augmented Intelligence in Health Care*, available at <https://www.ama-assn.org/system/files/future-health-augmented-intelligence-health-care.pdf>.

⁴ For example, one generative AI tool currently being tested is aimed at reducing provider burden by transforming patient and provider conversations into a clinical note that can be reviewed by the provider before being added to electronic health records. See Balasubramanian, *Is Ambient Dictation the Future of Clinical Documentation?* (Dec. 26, 2023), available at <https://www.forbes.com/sites/saibala/2023/12/26/is-ambient-dictation-the-future-of-clinical-documentation/?sh=7d4df3a88c08>.

system leverage a regulatory framework that ensures tools used in health care are safe and effective without imposing unnecessarily burdensome requirements that slow adoption and discourage innovation.

Investments in Innovation, Research and Development

Investments in research and development are critical to promote innovation in AI related to health care to provide patients with access to life-changing advancements in care delivery that improve quality of care and clinical outcomes. The United States should continue to lead in AI model development in addition to other key areas, such as implementation science and clinical trials.

To promote innovation and cutting-edge advancements, the health care industry would benefit from federal investments that support development and use of AI technology and infrastructure, standards development, workforce training, education and professional development programs. AI should augment human expertise, helping to alleviate administrative burden, improve clinical efficiency and enable health care professionals to focus on patient care. Investments should support training programs that prepare workers to collaborate effectively with AI, ensuring a seamless integration of AI-driven efficiencies across all levels of health care operations.

Rigorous research studies (including traditional, large-scale clinical trials and other designs such as health system-embedded studies) are critical because they create a robust body of research and evidence to demonstrate how AI tools perform across patient populations. This allows a wider range of health care entities to evaluate safety and efficacy of AI tools and is more efficient than relying on trials done by individual health entities and systems. Further, establishment of a voluntary post-implementation surveillance program would allow health care entities to share data to inform best practices and highlight potential issues in a much more efficient and cost-effective manner.

Federal Regulatory Framework

We believe the adoption of a federal framework for governing AI, including standard definitions and a common risk framework, is important to both support innovation and speed to market for AI tools used in health care, and to avoid the alternative of a proliferation of inconsistent state-level requirements. States are at various stages of exploration and adoption of comprehensive AI regulatory frameworks in addition to issue- and sector-specific AI regulation. The development of a patchwork of inconsistent state AI requirements will create a highly complex regulatory and compliance environment that will hamper the adoption of AI tools and discourage innovation.

We support the development of a national AI regulatory framework that is flexible, adaptable and evidence-based. It should provide a risk-based overarching structure consistent with nationally recognized AI risk management frameworks such as the National Institute of Standards and Technology (NIST) AI Risk Management Framework and the International Organization for Standardization/International Electrotechnical Commission (ISO/IEC) AI Guidance on Risk Management and allow for industry-specific guidelines that establish guardrails to ensure patient safety while being flexible and adaptable to keep pace with rapidly evolving technology. Where appropriate, the regulatory framework should adopt voluntary consensus standards to promote consistent development, use and oversight of AI while promoting innovation. Such a framework

would ideally preempt conflicting state laws to ensure a consistent approach, while still permitting states to address region-specific issues or concerns. It should also serve as the basis for informing global AI regulatory frameworks and standards to ensure AI developers based in the US do not experience barriers to global operation.

We also support the establishment and use of consistent definitions to describe AI and AI tools, developers, deployers and risk levels to ensure that efforts to regulate AI are appropriately tailored. These definitions should be informed by industry stakeholder feedback and focus regulatory efforts on new and emerging technologies, rather than tools that have been in place for years and been proven to be safe and effective.

Trust in AI

Trust in AI is essential for both clinicians and patients. The following policy actions related to transparency and accountability to improve trust in AI should be included in the AI federal regulatory framework to avoid inconsistent, duplicative, and overly burdensome state or industry specific transparency and accountability requirements for AI developers and deployers.

Transparency

Transparency is critical to ensure that AI used in health care is safe, effective and reliable. Health care providers may be hesitant to use “black box” AI tools that produce recommendations or other outputs that cannot be explained or are not fully understood. Additionally, transparency into how the tool was trained and/or developed can help providers identify and mitigate bias or other unintended results.

For example, algorithms perform differently based on the data that were used to train them. An algorithm trained only using data from Medicare enrollees may not be applicable to pediatric populations. Providers need this information to evaluate whether the tool is appropriate for their practice and patient population. Additionally, AI tools and systems can change over time with exposure to different data sets and uses. A collaborative process should be established between AI tool developers and deployers to “recalibrate” the data and intended uses to ensure they are still performing as expected and have not deviated from the model. This process should also include a standardized reporting mechanism for unexpected AI behaviors that could impact patient safety.

Another potential solution to ease transparency concerns is to require developers to provide a standard “nutrition label” that provides information regarding how the AI tool was created and what information was used to train or develop it. This would help deployers of AI tools better understand potential risks and issues inherent in the tool itself and whether it meets their intended uses.

Accountability

Both AI developers and health care entities that use AI tools must be accountable for issues that negatively impact the care delivery process. Accountability is critical to ensure patient trust in AI and confidence in its capabilities. However, it can be difficult to understand where accountability lies between developers of AI tools and individuals and organizations that deploy them. It is

important to clarify these roles and responsibilities to ensure that deployers are responsible for their use of the AI tool and developers are accountable for data quality (including any third-party data sources used for development and validation), model performance and design flaws.

Self-Developed Tools

We recommend that the definition of “developer” used in the national regulatory framework described above exclude health care entities that create AI tools for their own internal use and do not make the tools available to others. This approach promotes access to innovative technologies and reduces costs and administrative burden. Health care entities carefully tailor AI tools to work within our clinical workflows based on our patient populations resulting in tools that are more efficient and clinically effective. It also reduces risks associated with AI tools developed by third parties, such as potential misuse or data inconsistencies or vulnerabilities. Health care entities that self-develop tools are ultimately responsible for how the tool performs and many of the requirements applicable to developers (e.g. transparency reporting requirements) would not make sense to apply to entities that both develop and deploy the tool internally.

This approach is also consistent with the approach the Assistant Secretary for Technology Policy / Office of the National Coordinator for Health IT (ASTP/ONC) has taken regarding the definition of Health IT developers. To ensure consistency, Congress should also authorize the federal Food and Drug Administration (FDA) to exclude AI tools customized or developed for use solely within a health care system from the definition of a medical device that is subject to approval.

Coordinated Oversight

It is critical that a comprehensive national AI regulatory framework coordinate across federal agencies and ensure consistency across states to avoid duplicative and inconsistent requirements. As noted above, proliferation of state-specific requirements may lead to inconsistent, duplicative and conflicting laws and regulations that create compliance risks for health care entities and AI tool developers. To reduce confusion and guard against differences in interpretation and enforcement, we recommend avoiding having multiple regulators oversee the same requirements. AI should be overseen by expert federal agencies well versed in emerging technology and associated risks and benefits. Before introducing new laws or regulations, policymakers should evaluate if existing rules adequately address AI use.

For example, AI tools subject to review as medical devices by the FDA may be subject to regulation by more than one entity, which increases administrative burden and costs for the health care system without a corresponding benefit for patients. AI tools utilized by health systems would already be subject to requirements that ensure responsible AI development and deployment, and a coordinated oversight approach would ensure that these tools are not subject to regulation by multiple entities.

Privacy and Security

Patient health data is necessary to develop and train algorithms used in AI tools, as well as for the AI tool to perform its intended functions. Fortunately, health care information is already protected by the Health Insurance Portability and Accountability Act (HIPAA) privacy and security rules, which apply whenever a health care entity subject to HIPAA (a “covered entity”)

develops, evaluates, or uses an AI tool or application to provide care.

We recommend that the Department of Health and Human Services work with stakeholders to develop guidance that specifically describes existing privacy and security protections in place and how they apply to the use of AI data and tools in health care. This guidance should highlight any gaps or opportunities, such as consumer-driven tools and applications, so that any additional protections align with and build from the existing regulatory framework.

Cybersecurity

Health care entities are obligated to protect health information from unauthorized disclosures and take steps to mitigate risks of health care data breaches and cyberattacks. It is imperative that AI developers that create tools used in health care implement cybersecurity protections to safeguard sensitive health information held in AI models. These protections should be included in the development of the AI tool itself to encourage secure data sharing frameworks that enable AI driven research. AI developers should be accountable for data breaches or cyberattacks that occur due to issues with or inadequate cybersecurity protections in their models.

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Kaiser Permanente appreciates the opportunity to offer our thoughts on this subject. If you have questions, please contact me at [REDACTED] or Megan Lane at [REDACTED]

Sincerely,

Jamie Ferguson
Vice President, Health IT Strategy and Policy
Kaiser Foundation Health Plan, Inc

Stephen Parodi, MD
Executive Vice President
The Permanente Federation